

[TO BE PUBLISHED IN THE GAZETTE OF INDIA, EXTRAORDINARY, PART II, SECTION 3, SUB-SECTION (i)]

GOVERNMENT OF INDIA
MINISTRY OF FINANCE
(DEPARTMENT OF REVENUE)

NOTIFICATION
No. 15/2024-Customs (ADD)

New Delhi, the 23rd August, 2024

G.S.R...(E).- Whereas, the designated authority, *vide* notification number 7/28/2023- DGTR, dated the 29th December, 2023, published in the Gazette of India, Extraordinary, Part I, Section 1, dated the 29th December, 2023, initiated the review in terms of sub-section (5) of section 9A of the Customs Tariff Act, 1975 (51 of 1975) (hereinafter referred to as the Customs Tariff Act), read with rule 23 of the Customs Tariff (Identification, Assessment and Collection of Anti-dumping Duty on Dumped Articles and for Determination of Injury) Rules, 1995, in the matter of continuation of anti-dumping duty on imports of “Chlorinated Polyvinyl Chloride Resin (CPVC)-whether or not further processed into compound” (hereinafter referred to as the subject goods) falling under heading 3904 of the First Schedule to the Customs Tariff Act, originating in or exported from China PR and Korea RP (hereinafter referred to as the subject countries), imposed *vide* notification of the Government of India, Ministry of Finance (Department of Revenue) number 05/2020-Customs (ADD), dated the 7th March, 2020, published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i) *vide* number G.S.R. 164(E), dated the 7th March, 2020;

And whereas, in the matter of review of anti-dumping duty on imports of the subject goods, originating in or exported from the subject country, the designated authority in its final findings, *vide* notification number 7/28/2023-DGTR, dated the 25th May, 2024, published in the Gazette of India, Extraordinary, Part-I, Section 1, dated the 27th May, 2024, has come to the conclusion that-

- (i) the subject goods continue to be exported to India at prices below the normal value, resulting into dumping of the subject goods;
- (ii) dumped imports from subject countries are causing injury to the domestic industry;
- (iii) there is likelihood of dumping and likelihood of injury from the subject countries in an event of expiry of measures and if the anti-dumping measures are not modified,

and has recommended continued imposition of the anti-dumping duty on imports of the subject goods, originating in or exported from the subject country, in order to remove injury to the domestic industry.

Now, therefore, in exercise of the powers conferred by sub-sections (1) and (5) of section 9A of the Customs Tariff Act read with rules 18, 20 and 23 of the Customs Tariff (Identification, Assessment and Collection of Anti-dumping Duty on Dumped Articles and for Determination of Injury) Rules, 1995 and in supersession of the notification of the Government of India, Ministry of Finance (Department of Revenue), number 05/2020-Customs (ADD), dated the 7th March, 2020, published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i) *vide* number G.S.R. 164(E), dated the 7th March, 2020, except as respects things done or omitted to be done before such supersession, the Central Government, after considering the aforesaid final findings of the designated authority, hereby imposes on the subject goods, the description of which is specified in column (3) of the Table below, falling under tariff item of the First Schedule to the Customs Tariff Act as specified in the corresponding entry in column (2), originating in the country as specified in the corresponding entry in column (4), exported from the country as specified in the corresponding entry in column (5), produced by the producers as specified in the corresponding entry in column (6), of specification as specified in the corresponding entry in column (7), an anti-dumping duty at the rate equal to the amount as indicated in the corresponding entry in column (8), in the currency as specified in the corresponding entry in column (9) and as per unit of measurement as specified in the corresponding entry in column (10), of the said Table, namely :-

TABLE

S. No.	Tariff item	Description of goods	Country of origin	Country of export	Producer	Specification	Amount	Currency	Unit of measurement
(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)	(9)	(10)
1	39041010 39041020 39041090 39042100 39042200	Chlorinated Polyvinyl Chloride (CPVC) - whether or not further processed into compound	China PR	Any country including China PR	Any	CPVC resin	790	USD	MT
2	39043090 39044000 39045090 39046990 39049010		China PR	Any country including China PR	Any	CPVC compound	605	USD	MT
3	39049090		Any country other than China PR and Korea RP	China PR	Any	CPVC resin	790	USD	MT
4			Any country other than China PR and Korea RP	China PR	Any	CPVC compound	605	USD	MT
5			Korea RP	Any country including Korea RP	Hanwha Solutions Corporation	CPVC resin	593	USD	MT
6			Korea RP	Any country including Korea RP	Hanwha Solutions Corporation	CPVC compound	792	USD	MT
7			Korea RP	Any country including Korea RP	Any producer other than mentioned above	CPVC resin	593	USD	MT
8			Korea RP	Any country including Korea RP	Any producer other than mentioned above	CPVC compound	792	USD	MT

9			Any country other than China PR and Korea RP	Korea RP	Any	CPVC resin	593	USD	MT
10			Any country other than China PR and Korea RP	Korea RP	Any	CPVC compound	792	USD	MT

Note:– Customs classification is indicative only and not binding on the scope of the product under consideration. If the product is imported in any other code, the same is liable to anti-dumping duty.

2. The anti-dumping duty imposed under this notification shall be levied for a period of five years (unless revoked, superseded or amended earlier) from the date of publication of this notification in the Official Gazette and shall be payable in Indian currency.

Explanation.- For the purposes of this notification, rate of exchange applicable for the purpose of calculation of such anti-dumping duty shall be the rate which is specified in the notification of the Government of India, Ministry of Finance (Department of Revenue), issued from time to time, in exercise of the powers conferred by section 14 of the Customs Act, 1962 (52 of 1962), and the relevant date for the determination of the rate of exchange shall be the date of presentation of the bill of entry under section 46 of the said Customs Act.

[F. No. CBIC-190354/117/2024-TRU Section-CBEC]

(Amreeta Titus)
Deputy Secretary to the Government of India